

24VECV05185 24VECV05185

County: los-angeles

Division: Civil Law and Motion

Department: I

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Case Number: 24VECV05185 Hearing Date: June 26, 2026 Dept: I

24VECV05185 GABRIELA OCHOA JASSO, AN

INDIVIDUAL, et al. vs ABRAM MURADYAN, AN INDIVIDUAL, et al.

June, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Ruling – Minor's Comp.

I.

Background

On October 22, 2024, Plaintiffs

Gabriela Ochoa Jasso ("Petitioner"), Mason Montelongo, by and through his guardian ad litem Gabriela Ochoa Jasso ("Mason"), Matthew Montelongo, by and through his guardian ad litem Gabriela Ochoa Jasso ("Matthew"), and Maya Montelongo, by and through her guardian ad litem Gabriela Ochoa Jasso ("Maya")(collectively "Plaintiffs"), filed a complaint against Defendants Abram Muradyan ("Muradyan"), Marine Glidzhyan ("Glidzhyan"), Helen Hee ("Hee"), and Does 1 to 50 alleging two causes of action: (1) negligence; and (2) premises liability.

On May 12, 2026, Petitioner filed the instant petitions for expedited approval of compromise of claim on behalf of Maya, Matthew, and Mason.

II. Petition

for Approval of Compromised Claim

Court approval is required for all settlements of a minor's claim. (Cal. Prob. Code §§ 3500, 3600, et seq.; Cal. Code of Civ. Proc. § 372.) "[W]ithout trial court approval of the proposed compromise of the ward's claim, the settlement cannot be valid. [Citation.] Nor is the settlement binding [on the minor] until it is endorsed by the trial court." (Pearson v. Superior Court (2012) 202 Cal.App.4th 1333, 1338.) A minor, like Claimant, "shall appear either by a guardian or conservator of the estate or by a guardian ad litem appointed by the court in which the action or proceeding is pending, or by a judge thereof, in each case." (CCP § 372(a)(1).) Alternatively, the petitioner may file a declaration demonstrating that he or she has a right to compromise the minor's claim under Prob. Code § 3500.

Regarding the substance of the petition, to obtain court approval of the settlement of a minor's claim, the petitioner must file a complete and "verified petition for approval of the settlement and must disclose 'all information that has any bearing upon the reasonableness of the compromise.' [Citations.]" (Barnes v. Western Heritage Ins. Co. (2013) 217 Cal.App.4th 249, 256; Cal. Rules of Court Rule 7.950.)

Petitioner seeks court approval for a settlement under which Maya, Matthew, and Mason (hereinafter "Claimants") will receive \$5,000.00 each. (See MC-350EX Item 11.) Of this amount, \$100.00 will pay for medical expenses, \$1,250.00 for attorney's fees, and \$844.60 for legal expenses, leaving Claimants with a net settlement amount of \$2,805.40 each. (See MC-350EX Item 17.)

Medical records are provided as Attachment 9. (See MC-350EX Attachment 9.) Attorney's fees are designated by retainer agreement and reasonably represent 25% of the gross settlement amounts. (See MC-350EX Attachment 14a [agreement].) The funds are to be deposited in a blocked account. (See Item 18.)

Notably, Petitioner is set to receive \$70,000.00 in settlement. (See MC-350Ex Item 12.) Petitioner incurred greater medical expenses than Claimants. (See Attachment 11c.)

Based on the foregoing, the instant petitions are GRANTED.

Petitioner to give notice.